

NOTE.—If the plaintiff is the executor or administrator, or assignee of the next of kin, or one of the next of kin, let him be so described, as “that he, the said A. B., is the executor or administrator of E. F., deceased, or assignee of E. F., who was the next of kin, or one of the next of kin,” &c.; or “that he is the administrator de bonis non, or the executor of the executor of E. F., deceased, who was the next of kin,” &c. and that the said A. B. is entitled, as such executor or administrator, or assignee or administrator de bonis non, or executor of the said E. F., to a share of the personal estate, &c.

Alterations
according to
circumstances.

The above follows, in the body of it, the English form No. 4, but the foot-note is not appended in the English Order.

Similar to
English form.

By the executor or administrator of a deceased person claiming to have the personal estate of the testator administered under the direction of the Court.

IN CHANCERY.

To the Honourable, &c.

Humbly complaining, &c., your orator, &c., that he is the executor (or administrator) of E. F., late of ———, but now deceased, who departed this life on or about the ———, and that he has possessed the personal estate of the said E. F. to some amount, and that he is willing and desirous to account for the same, and that the whole of the personal estate should be duly administered in this Court for the benefit of all persons interested therein or entitled thereto, and that C. D., E. F., and G. H. are interested in the said personal estate as the next of kin (or residuary legatees) of the said E. F. To the end therefore that the said A. B. may have the personal estate of the said E. F. applied in a due course of administration under the direction of this Court, or that the said C. D., E. F., and G. H. may show good cause to the contrary, and that the costs of this suit may be provided for, and for these purposes that all proper directions may be given and accounts taken.

(And for further relief; pray subpoena, &c.)

This is similar to the English form No. 5.

Similar to
English form.

By a legal or equitable mortgagee or person entitled to a lien as security for a debt seeking foreclosure or sale, or otherwise to enforce his security.

IN CHANCERY.

To the Honourable, &c.

Humbly complaining, &c., your orator, &c., that under and by virtue of an indenture (or other document), dated, &c., and made, &c. (and a transfer thereof, made by indenture, dated, &c., and made, &c.) the said A. B. is a mortgagee (or an equitable mortgagee) of (or, is en-

6.
Foreclosure
Bill.